

## 24NNCV01540 24NNCV01540

County: los-angeles

Division: Civil Law and Motion

Department: A

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Case Number: 24NNCV01540 Hearing Date: July 31, 2026 Dept: A

### TENTATIVE RULING

JULY 31, 2026

### MOTION FOR TERMINATING SANCTIONS

Los

Angeles Superior Court Case # 24NNCV01540

MP: Plaintiff

Maria

De Los Angeles Meza Santos

RP: Defendant

Nibaldo Gutierrez

### NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at [email protected] or by telephone at (818) 260-8412.

#### ALLEGATIONS:

Maria De Los Angeles

Meza Santos ("Plaintiff") alleges that on November 17, 2023, she was lawfully on property located at 7322 Kraft Avenue in Noth Hollywood to deliver her rent payment to landlord Nibaldo Gutierrez, individually and as trustee of the Gutierrez Family Trust ("Defendant"). Plaintiff claims that she was viciously attacked by Defendant's dog and sustained bodily injuries.

The Second Amended

Complaint ("SAC"), filed April 15, 2025, alleges: (1) Negligence; (2) Statutory Liability - Dog Bite Statute; (3) Strict Liability; and (4) Premises Liability.

#### MOTION ON CALENDAR:

On June 2, 2026,

Plaintiff filed a Motion for Terminating Sanctions and Request for Monetary Sanctions against Defendant. On July 22, 2026, Plaintiff filed a Notice of Defendant's Non-Opposition. (The opposition was due by July 20, 2026.) On July 23 and 28, 2026, Defendant filed an untimely opposition and declaration. As of July 29th no reply was received, nor was one required given the Defendant's late filing.

#### LEGAL STANDARD:

C.C.P. § 2023.030 permits the Court to

impose terminating sanctions for discovery misuses defined in C.C.P. § 2023.010. These misuses include not responding to discovery and the failure to comply with a Court discovery order.

The

Court weighs the following factors when considering the present motion: (1) defendants' conduct, indicating whether their actions were willful; (2) the detriment to the party seeking discovery; and (3) the number of formal and informal unsuccessful attempts to obtain discovery. (Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.) Ultimate discovery sanctions are justified where there is a willful discovery order violation, a history of abuse, and evidence showing that less severe sanctions would not produce compliance with

discovery rules. (Van Sickle v. Gilbert (2011) 196 Cal.App.4th 1495, 1516.)

#### ANALYSIS:

Plaintiff moves for terminating sanctions against Defendant, arguing Defendant failed to submit court-ordered discovery, comply with the Court's order thereby prejudicing Plaintiff's ability to prepare her case, and pay monetary sanctions in violation of multiple orders.

#### A. Terminating Sanctions

The relevant procedural background is as follows.

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Motion to Compel Further Responses: On November 6, 2024, Plaintiff propounded discovery on Defendant who responded on January 20, 2025. After meeting and conferring, Plaintiff filed a motion to compel further responses on April 13, 2025 (September 12, 2025 hearing date). On September 8, 2025, Defendant served an untimely opposition to the motion. On September 16, 2025, the Court issued its ruling on the submitted matter, granting the motion as to FROG Nos. 12.2, 12.3, 12.5-12.7, 13.1, and 13.2; SROG Nos. 7-11, 17-19, 22, 24-25, and 30-31; and RPD Nos. 5-7 and 18; and denying the motion as to SROG No.

27. The Court ordered further, verified responses without objection with 30 days of the order. The Court also imposed \$4,500 in sanctions against Defendant and his counsel of record, jointly and severally, but stayed the sanctions pending discovery compliance and no subsequent discovery violations. (Mot., Exs. 1-4.) Plaintiff indicates that further responses were provided. (Mot. at 13:27-28.)

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Motion to Compel Deposition: On July 18, 2025, Plaintiff noticed Defendant's deposition for August 20, 2025, and on August 18, 2025, defense counsel Matthew P. Todd responded that he was unaware of a noticed deposition and would provide two alternate deposition dates. Plaintiff's counsel, Rosibeth Cuevas, asked for dates by August 19, 2025 and followed up on August 19, 2025. On September 17, 2025, Plaintiff served the Second Amended Notice of Taking Defendant's deposition for September 30, 2025. In light of the Court's September 16, 2025

order, Plaintiff requested alternate dates in November to reschedule the deposition, to which Mr. Todd stated he would be able to accommodate a November deposition. On October 10, 2025, Mr.

Todd emailed Plaintiff to schedule the deposition and Plaintiff responded with six alternate dates in November and December.

On November 14, 19, and 21, 2025, Ms. Cuevas sent three emails following up on the deposition dates. On December

10, 2025, Ms. Cuevas requested that Defendant provide his availability by

December 12, 2025, but Defendant did not provide dates. On December 15, 2025, Plaintiff served the

Third Notice of Taking Defendant's Deposition for January 5, 2026. Plaintiff did not receive an objection. On January 2, 2026, Defendant stated he could

not confirm the deposition and would provide alternate dates by January 5,

2026. On January 5, 2026, Defendant did

not appear for his deposition and also failed to provide alternate dates via

email. On January 9, 2026, Mr. Todd

stated that he and Defendant were ill and proposed January 29 and 30 for the

deposition, and Plaintiff proposed alternate dates in February. On January 16, 2026, Mr. Todd emailed

Plaintiff stating he was awaiting Defendant's response regarding deposition

dates. (Mot., Exs. 5-18.)

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On January 29, 2026, Plaintiff filed a motion to compel

Defendant's deposition (April 10, 2026 hearing date). On April 9, 2026, Defendant untimely filed

Mr. Todd's declaration in opposition. On

April 10, 2026, the matter came for hearing and Plaintiff did not appear

because she had not received notice that Defendant intended to orally argue;

she then submitted a supplemental declaration on April 12, 2026. On April 17, 2026, the Court ruled on the

submitted matter and granted the motion and ordered the parties to meet and

confer regarding Defendant's proposed May 11-13 dates or to ascertain a

mutually agreeable deposition date. The

Court imposed \$1,705 in sanctions against Defendant and his counsel of record,

jointly and severally, to be paid within 30 days of the order, but allowed the

stay on the \$4,500 to remain in place. (Mot.,

Exs. 19-25.)

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Plaintiff noticed Defendant's deposition for May 11, 2026 at

2:00 p.m., but Defendant did not appear for his deposition. (Mot., Exs. 26-27.) Prior to taking the non-appearance, Plaintiff

contacted Defendant to remind him of the deposition, but Defendant did not

respond to Plaintiff's email, explain his non-appearance, or attempt to

reschedule the deposition. (Id.  
at Ex. 28.)

Plaintiff argues that Defendant  
violated the Court's April 17, 2026 order by failing to attend his deposition  
and pay the \$1,705 sanctions despite email reminders. (Mot., Ex. 29.) Plaintiff argues that Defendant has a history  
of filing untimely opposition briefs, delaying efforts to meet and confer, and  
failed to attend his deposition though he represented he was available on May  
11, 2026. Thus, she argues that less  
severe sanctions would not produce compliance with the discovery rules, such  
that terminating sanctions are justified.

In the untimely opposition,  
defense counsel Matthew Todd submitted his declaration stating that Defendant  
does not seek to avoid his discovery obligations but requests an extension of  
time to provide deposition testimony and oppose this motion. (Todd Decl., ¶ 2-3.) Mr. Todd states that Defendant has had an  
unexpected and medically serious interruption to his ability to communicate,  
review documents, recall relevant events, and verify written responses under  
oath as he underwent maxillofacial surgery in June 2026 as a medical tourist in  
Colombia. (Id., ¶4.)

In the untimely Declaration of  
Matthew Todd re: Payment of Sanctions, defense counsel attaches a July 27, 2026  
letter to Plaintiff showing that a cashier's check for \$1,705 was submitted  
pursuant to the Court's order.

While Plaintiff has shown that  
Defendant has failed to obey the Court's April 17, 2026 order, Plaintiff  
acknowledges that Defendant complied with the Court's September 16, 2025  
order. (The Court is not aware of when  
Defendant provided further discovery responses, but it appears that Defendant  
did eventually provide responses.) While  
Defendant did not attend his noticed deposition, the Court declines at this  
time to impose terminating sanctions against Defendant as there is some  
indication that he attempted to comply with some discovery orders and  
obligations and, he recently paid the \$1,705 sanctions amount, and Mr. Todd  
represented that Defendant intends to comply with his discovery obligations. Thus, the motion for terminating sanctions is  
denied without prejudice.

It has not gone unnoticed by the

Court that the recent excuse for not being available for discovery was surgery in June 2026; however, had Defendant responded and attended a prior deposition date it would have predated the surgery and the matter would have been moot. That was not done.

Additional deposition dates were not timely provided and at this time the previously ordered sanctions of \$4,500 which were stayed are imposed and due within 30 days.

Defendant will be ordered to cooperate with ascertaining a mutually agreeable deposition date promptly as the Final Status Conference is set for October 22, 2026 and the Jury Trial is set for October 26, 2026. If Defendant fails to comply with his discovery obligations or the Court's order, the Court may consider terminating sanctions if further violations continue despite formal and informal attempts to secure Defendant's compliance.

B.

#### Monetary Sanctions

Under California law, a discovery order cannot go further than is necessary to accomplish the purpose of discovery. (Newland v. Superior Court (1995) 40 Cal. App. 4th 608, 613.) The purpose of discovery sanctions is to prevent abuse of the discovery process and correct the problem presented. (McGinty v. Superior Court (1994) 26 Cal. App. 4th 204, 210.)

Plaintiff seeks monetary sanctions in the amounts of: (1) \$2,948.25 for bringing this motion; (2) \$1,705 pursuant to the Court's April 17, 2026 order; and (3) \$4,500 upon lifting the stay imposed in the Court's September 16, 2025 Order.

For the reasons stated above, the actions by the defense concerning deposition warrant a lifting of the stay and the \$4,500 is imposed joint and several against Defendant and counsel. Depositions were noticed and no alternative dates were provided as promised.

Defendant and counsel failed to appear for another noticed deposition on January 5, 2026, six months prior to the surgery which is now used to delay

further discovery. The missed January 5, 2025 deposition date was without good cause.

With respect to the \$1,705 sanctions amount ordered on April 17, 2026, as indicated above, Defendant untimely transmitted the check to Plaintiff on July 27, 2026 (due by May 30, 2026).

Plaintiff also requested \$2,948.25 in monetary sanctions to bring this motion. (= [3 hours for the motion + 2 anticipated hours reviewing/responding to the reply and attending the hearing at \$350/hour] + \$60 in filing fees + \$1,138.25 for the certificate of non-appearance fee). (Cuevas Decl., ¶132.) The Court will award \$2,248.25 total for the time incurred for Plaintiff to file this motion.

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#### RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

#### ORDER

Plaintiff Maria De Los Angeles Meza Santos' Motion for Terminating Sanctions and Request for Monetary Sanctions came on regularly for hearing on July 31, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, did then and there rule as follows:

the Motion FOR

TERMINATING SANCTIONS AGAINST DEFENDANT IS DENIED WITHOUT PREJUDICE. THE PARTIES ARE ORDERED TO MEET AND CONFER IN

GOOD FAITH TO ASCERTAIN A MUTUALLY AGREEABLE DEPOSITION DATE IN LIGHT OF THE UPCOMING TRIAL DATE SET FOR OCTOBER 26, 2026, PREFERABLY WITHIN TWO WEEKS OF

THIS ORDER. IF THE PARTIES ARE UNABLE TO  
ASCERTAIN A MUTUALLY AGREEABLE DEPOSITION DATE, PLAINTIFF MAY NOTICE  
DEFENDANT'S DEPOSITION WITHIN TEN DAYS OF THE LAST MEET AND CONFER EFFORTS.

Defendant and his counsel of record, jointly and  
severally, are ordered to pay monetary sanctions in the amount of \$2,248.25 IN  
ADDITION TO \$4,500 IN SANCTIONS PREVIOUSLY STAYTED to Plaintiff, by and through  
counsel, within 30 days of this order.

PLAINTIFF'S REQUEST FOR THE \$1,705 SANCTIONS AMOUNT  
ORDERED ON APRIL 17, 2026 IS MOOT IN LIGHT OF DEFENDANT'S RECENT PAYMENT.

A DISCOVERY STATUS CONFERENCE IS SET FOR AUGUST 6,  
2026 AT 9:00 A.M. PLAINTIFF MAY CONTACT  
THE COURT AND TAKE THIS HEARING OFF CALENDAR IF THERE ARE NOT ANY PENDING  
DISCOVERY ISSUES.

Plaintiff  
TO GIVE NOTICE.

IT IS SO ORDERED.